

STATE OF NORTH CAROLINA

File No.

SYNTH-17CRS000002

Scan No.(s)

Wake County

In The General Court Of Justice

☐ District ☒ Superior Court Division

NOTE: This petition requires the payment of a filing fee unless the petitioner is an indigent.

STATE VERSUS

Name And Address Of Petitioner (type or print full name)

Alexandria Lee Montgomery Example
9876 Synthetic Long Residence Lane

Raleigh NC 27601

Drivers License No.

SYNTH123456

State

NC

Race

White

Sex

F

Date Of Birth

04/17/2000

Full Social Security No.

123-45-6789

Age At Time Of Offense

17

PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-145.8A

(NON-TRAFFIC MISDEMEANOR OR FELONY UNDER AGE 18
COMMITTED BEFORE RAISE THE AGE)

G.S. 15A-145.8A, 15A-150

Name And Address Of Petitioner's Attorney For Expunction Petition

NOTE TO PETITIONER: List the arresting agency and any State or local government agency that has a record of your case. You **must** provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will **not** provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.

Name And Address Of Arresting Agency

Synthetic Raleigh Arresting Agency
100 Example Public Records Street

Raleigh NC 27601

Name And Address Of Other Agency (if any)

Synthetic Wake County Records Agency
200 Example Records Street

Raleigh NC 27601

Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)

File No.(s)	Date Of Arrest	Offense Description	Date Of Offense	Disposition	Date Of Disposition/Conviction
SYNTH-17CRS000002	06/12/2017	Synthetic Class H felony	06/10/2017	Guilty	09/14/2017
SYNTH-17CRS000003	06/12/2017	Synthetic Class I felony	06/10/2017	Guilty	09/14/2017

PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-145.8A and certify as follows:

- In this court of the county named above I was convicted of the felony(ies) and/or misdemeanor(s) listed above, and further certify that:
 - No offense listed above is more serious than a Class H felony.
 - No offense listed above is among the exceptions in G.S. 15A-145.8A(b).
- At the time the offense(s) was (were) committed, I was less than 18 years age but at least 16 years of age.
- The offense(s) listed above was (were) committed prior to December 1, 2019.
- I have completed any active sentence, period of probation, and post-release supervision ordered for the offense(s).
- I have no restitution orders, or outstanding civil judgments representing amounts ordered for restitution for the offense(s), against me.
- I have served a copy of this form on the district attorney.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

Date	Name (type or print) Alexandria Lee Montgomery Example	Signature	☒ Petitioner ☐ Petitioner's Attorney
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CERTIFICATE OF SERVICE

I certify that a copy of this motion was served by:

- ☐ delivering a copy personally to the district attorney. ☐ leaving a copy at the office of the district attorney with an associate or employee.
- ☐ depositing a copy enclosed in a postpaid properly addressed envelope in a post office or official depository under the exclusive care and custody of the U.S. Postal Service, directed to the district attorney.
- ☐ email (☐ from ICMS/OFS) to the district attorney at _____, the email address of record with this court for that person.

Date Served	Name Of Person With Whom Copy Left (type or print)	Signature Of Person Serving
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☐ Service accepted by the district attorney.

Date	Name Of Person Accepting Service (type or print)	Signature Of Person Accepting Service
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(Over)

FINDINGS OF FACT

After a hearing on the petition, the Court makes the following findings of fact:

- ☐ 1. Petitioner was convicted of the felony(ies) and/or misdemeanor(s) listed above.
- ☐ 2. Each offense(s) listed above is a misdemeanor or Class H or I felony eligible for expunction under G.S. 15A-145.8A.
- ☐ 3. At the time the offense(s) was (were) committed, the petitioner was less than 18 years of age but at least 16 years of age.
- ☐ 4. Each offense(s) listed above was committed prior to December 1, 2019.
- ☐ 5. The district attorney has been served with a copy of this petition at least thirty (30) days prior to this date, has received notice of the hearing ☐ and has no objection. _____ (Prosecutor's Initials)
- ☐ 6. Petitioner has completed any active sentence, period of probation, and post-release supervision ordered for the offense.
- ☐ 7. Petitioner has no restitution orders or outstanding civil judgments representing amounts ordered for restitution entered against him/her.
- ☐ 8. The district attorney's office made its best efforts to contact the victim(s) of the offense(s) listed above.
- a. A victim(s) of the offense(s) listed above ☐ did ☐ did not make a request to be present at the hearing on this petition for expunction.
- b. A victim(s) of the offense(s) listed above ☐ was ☐ was not present at the hearing on this petition for expunction.
- c. The Court ☐ has ☐ has not considered the victim's views and concerns.
- ☐ 9. Petitioner ☐ is ☐ is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because:
- _____
- _____

ORDER

Therefore, the Court hereby ORDERS:

- ☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge or conviction. The Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.
- ☐ 2. For the reason(s) identified in Finding No. 9, the petition is denied.

NOTE TO CLERK: *If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.*

Date	Name Of Presiding Judge (type or print)	Signature Of Presiding Judge
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CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court	SEAL
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NOTE TO CLERK: *If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:*

State Bureau of Investigation Attn: Expunction Unit 3320 Garner Road Raleigh, NC 27610	NC Department of Adult Correction Attn: Combined Records Section 4226 Mail Service Center Raleigh, NC 27699-4226	NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch Attn: Hearings/Adjudication Unit 3118 Mail Service Center Raleigh, NC 27699-3118	NC Administrative Office of the Courts Attn: Records Officer PO Box 2448 Raleigh, NC 27602
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NOTE TO PETITIONER: *If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.*

**INSTRUCTIONS FOR PETITION AND ORDER OF EXPUNCTION
UNDER G.S. 15A-145.8A
(NON-TRAFFIC MISDEMEANOR OR FELONY UNDER AGE 18 COMMITTED BEFORE RAISE THE AGE)
FORM AOC-CR-293, Rev. 3/25**

The procedure for completion of the AOC-CR-293, Petition And Order Of Expunction Under G.S. 15A-145.8A, and obtaining a hearing on the petition is as follows:

1. **Print clearly and legibly, using only black ink.** If you wish to submit a typed petition, the form is available electronically on the NCAOC's website at www.nccourts.gov/documents/forms. In the "Contains" field, enter the number of the petition, AOC-CR-293. Searching by the form number will provide you with a link to a fillable PDF version of the form.
2. No order should be entered until the form has been completed and signed by the petitioner.
3. The petitioner or attorney should complete all offense information on Side One of the form from the court file. Please pay special attention to correctly identifying the arresting agency(ies) and any other State or local agency that has a record of the case. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will **not** send a copy of the order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.
4. A fee of \$52.50 must be paid to the clerk at the time the petition is filed, unless the petitioner is indigent.
5. It is the responsibility of the petitioner to ask the clerk or DA to schedule the petition for hearing.
6. If an order of expunction is entered, the clerk makes copies of the order, completes "Certification By Clerk" on each copy, and sends certified copies to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, the arresting agency and any other State or local government agency identified on the petition, and the NCAOC.
NOTE: The clerk of superior court will send you a certified copy of the final order. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk will have no record of the case and will be unable to provide any documentation of the case. This includes the expunction order; it will be destroyed with the case file.
7. The clerk retains the original order of expunction to be disposed of with the papers in this case.
8. If the petition is denied, the clerk will retain the original of the denied petition.

NOTE TO PETITIONER: *The expunction of your case information from the records of the court and of other State and local government agencies does not guarantee that the information will be expunged from all other sources. Private companies routinely acquire copies of criminal records from State and local criminal justice agencies. Certain private entities are required to expunge your case information upon receiving notice of the expunction order, but there may be a delay between entry of the order of expunction and deletion from the entity's records. Further, that duty to expunge does not apply to all private entities. If a private entity distributes information about your expunged case, contact the private entity to determine which government agency was the source of the information, and then contact that government agency to determine whether or not the expunction order was received. If the private entity claims that the NCAOC was the source of the information, contact the NCAOC's Remote Public Access office at rpa@nccourts.org or (919) 890-2220 to investigate the entity's claim.*

(TYPE OR PRINT IN BLACK INK)
STATE OF NORTH CAROLINA

Wake County

File No.

SYNTH-17CRS000002

In The General Court Of Justice

☐ District ☒ Superior Court Division

CIVIL AFFIDAVIT OF INDIGENCY

G.S. 7A-450 et seq.

Name Of Applicant Alexandria Lee Montgomery Example	
Street Number And Street Name, Including Apartment Or Unit Number If Applicable 9876 Synthetic Long Residence Lane	
City, State And Zip Code Raleigh NC 27601	
Full Permanent Mailing Address Of Applicant (if different than above)	
Telephone Number Of Applicant 919-555-0142	Date Of Birth 04/17/2000

☐ Plaintiff

☒ Defendant

Applicant: (answering this question is optional) Have you ever served in the United States Armed Forces? ☐ Yes ☒ No

MONTHLY INCOME (money you make)

MONTHLY EXPENSES (money you pay out)

Employment - Applicant	\$ 1850.00	Number Of Dependents	1
Name And Address Of Applicant's Employer (If not employed, state reason; if self-employed, state trade) Synthetic Employer, 100 Employment Street, Raleigh NC 27601		Shelter ☐ Buying ☒ Renting	\$ 1050.00
		Food (including Food Stamps)	\$ 400.00
		Utilities (power, water, heating, phone, cable, etc.)	\$ 220.00
		Health Care	\$ 100.00
Other Income (Welfare, Food Stamps, S/S, Pensions, etc.)	\$ 240.00	Installment Payments	\$ 150.00
Employment - Spouse	\$ 0.00	☒ Vehicle ☐ Other	
Name And Address Of Spouse's Employer Not married		Car Expenses (gas, insurance, etc.)	\$ 120.00
		Support Payments	\$ 0.00
		Other: (specify) Telephone	\$ 50.00
Total Monthly Income	\$ 2090.00	Total Monthly Expenses	\$ 2090.00

DESCRIPTION OF ASSETS AND LIABILITIES

ASSETS
(things you own)

LIABILITIES
(amounts you owe)

Cash On Hand And In Bank Accounts (list name of bank and account type, do <u>not</u> list account no.) Synthetic checking account	\$ 250.00	
Money Owed To Or Held For Applicant	\$ 0.00	
Motor Vehicles (list make, model, year) 2014 synthetic sedan	(Fair Market Value) \$ 2400.00	(Balance Due) \$ 1750.00
Real Estate	(Fair Market Value) \$ 0.00	(Balance Due) \$ 0.00
Personal Property	(Fair Market Value) \$ 650.00	(Balance Due) \$ 0.00
Other Debts		\$ 500.00
Last Income Tax Filed 20 25 ☒ Refund ☐ Owe	\$ 0.00	\$ 0.00
Other	\$ 0.00	\$ 0.00
Total Assets And Liabilities	\$ 3300.00	\$ 2250.00

Bond Type Not applicable	Amount \$ 0.00	By Whom Posted Not applicable
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NOTE: Read the notice on the reverse side before completing this form.

(Over)

NOTICE TO PERSONS REQUESTING INDIGENCY OR PARTIAL INDIGENCY DESIGNATION

1. When answering the questions on the Affidavit Of Indigency (*reverse side of this form*), please do not discuss your case with the interviewer. The interviewer can be called as a witness to testify about any statements made in his/her presence. Please wait and speak with your lawyer. Do not ask the interviewer for any advice or opinion concerning your case.
2. **A designation of indigency relieves your obligation to pay all of the arbitration fee. A designation of partial indigency requires you to pay your appropriate percentage of your pro rata share of the arbitration fee prior to arbitration. Failure to pay the arbitration fee will result in the entry of a civil judgment against you, which will accrue interest at the legal rate set out in G.S. 24-1 from the date of the entry of judgment. Your North Carolina Tax Refund and/or North Carolina Lottery winnings may be taken.**
3. The information you provide may be verified, and your signature below will serve as a release permitting the interviewer to contact your creditors, employers, family members, and others concerning your eligibility for an indigency designation. A false or dishonest answer concerning your financial status could lead to prosecution for perjury. See G.S. 7A-456(a) ("A false material statement made by a person under oath or affirmation in regard to the question of his indigency constitutes a Class I felony.").

Under penalty of perjury, I declare that the information provided on this form is true and correct to the best of my knowledge, and that I am financially unable to pay all or part of the arbitration fees prior to the arbitration. I now request that I be designated indigent or partially indigent. I authorize the Court to contact my creditors, employers, or family members, any government agencies or any other entities listed below concerning my eligibility for such designation.

I further authorize my creditors, employers, or family members, any governmental agencies or any other entities listed below to release financial information concerning my eligibility for such designation upon request of the Court.

Governmental Agencies Or Other Entities Authorized To Be Contacted And/Or To Release Information

Employer and financial institutions listed above

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		<i>Date</i>
<i>Date</i>	<i>Signature</i>	<i>Signature Of Applicant</i>
☐ Deputy CSC ☐ Assistant CSC ☐ Clerk Of Superior Court ☐ Magistrate		<i>Name Of Applicant (type or print)</i> Alexandria Lee Montgomery Example
☐ Notary	<i>Date My Commission Expires</i>	☐ Plaintiff ☒ Defendant
SEAL	<i>County Where Notarized</i>	

North Carolina youthful-conviction filing guide

Correct participant petition and court

Prepared for Alexandria Lee Montgomery Example. Use AOC-CR-293 Rev. 3/25 under G.S. 15A-145.8A in the Superior Court Division in Wake County, the court of conviction. Read the attached exact official AOC-CR-293 instructions. AOC-CR-296 is a district attorney form under a different statute and is not part of this packet. AOC-CR-294 is the district attorney counterpart; this is the participant petition.

Check every supplied fact before personal execution

The offense date must be before December 1, 2019 and you must have been 16 or 17 then. Confirm the exact dates from birth and court records; seek legal assistance near the eighteenth-birthday or December 1 boundary. The official record must establish each listed class: non-traffic misdemeanor, Class H or Class I felony, with no exclusion under G.S. 15A-145.8A(b). LegalEase does not determine offense class or legal exclusions.

SYNTH-17CRS000002: supplied official-record class H; offense 06/10/2017; age 17. Supplied answers confirm active sentence, probation and post-release supervision complete, no restitution order and no outstanding civil restitution judgment.

SYNTH-17CRS000003: supplied official-record class I; offense 06/10/2017; age 17. Supplied answers confirm active sentence, probation and post-release supervision complete, no restitution order and no outstanding civil restitution judgment.

Record review remains required before filing. Obtain and compare the certified court file, sentence/probation/post-release completion evidence and restitution records before signing. Pending procurement does not prevent this draft.

Court findings remain blank. Do not sign an untrue statement or claim service has happened before actual service. Sign and date the petition personally only after review and required service; this source petition has no notarial block.

Obtain and compare the SBI right-to-review record

Request a right-to-review copy of your own North Carolina criminal history from the State Bureau of Investigation (SBI). Compare the offense class and offense date for each conviction against that SBI record and the court file. Correct this packet before filing if your answers disagree with those records; ask for legal help if the class or exclusion is uncertain. Obtain the court file from the clerk, and the judgment and probation/post-release completion documentation from the clerk or supervising office. This record procurement is a before-filing task and does not prevent preparation of a draft.

Agency and offense inventory

List the arresting agency and other North Carolina state/local agencies holding the case with complete addresses. Do not list courts, SBI, Department of Adult Correction, DMV or private companies; the official form explains their notification channels. Check all agencies/offenses against the court file. If more than 3 agencies or 6 offense rows are required, use official AOC-CR-285 and check the attachment box; do not omit records to fit this packet. This fixture has no overflow attachment.

Fee and requested indigency affidavit

The attached current issuer instruction sets a \$52.50 filing fee, unless indigent. Confirm payment method and local submission procedure with the clerk. You requested AOC-CV-226, included with your supplied financial facts. Review all totals, income, expenses, assets and liabilities. Sign its affidavit only before the authorized oath administrator; leave the signature, date and jurat blank until actual execution. A request is not approval.

Serve the district attorney and request a hearing

Serve a copy of the petition on the district attorney at least 30 days before the hearing. Ask the clerk or district attorney to schedule the hearing and confirm the exact service destination and permitted method. Use the source certificate only after actual personal delivery, mail, permitted office delivery or authorized email/ICMS service. Record the real method, recipient and date then; no completed service is generated. DA acceptance, prosecutor initials, victim-contact statements, objections, findings, order and clerk certification belong to those officials and remain blank. Bring the records supporting your supplied facts to the hearing.

North Carolina youthful-conviction filing guide

When self-help must stop

Obtain legal help for uncertain age/date boundaries, Class A through G felonies, any subsection (b) exception, traffic classification, restitution orders or outstanding civil restitution judgments, incomplete sentence/probation/post-release obligations, or any immigration question. The court determines eligibility and relief; this draft makes no court finding.

Keep the entered order and follow up

If granted, the clerk sends certified copies to you and the official agencies identified in the source instructions. Keep your certified order permanently and notify the clerk in writing if your address changes: after expunction, the case file and order may be destroyed and the clerk cannot replace them. A court order does not guarantee immediate removal from every private database. Follow the attached issuer instructions for contacting the private provider and originating government agency.

Synthetic review fixture: do not file these sample facts.